

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA
and THOMAS E. DESOUSA,
 Plaintiffs,
 -against-

Index No: 600371/2021

**AFFIRMATION IN SUPPORT
OF SUMMARY JUDGMENT
MOTION**

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,
 Defendants.
 -----X

JASON M. BARBARA, an attorney duly licensed to practice before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury:

1. I am the attorney for the Defendant **RICHARD A. CALVAGNO II**, in the above captioned action and as such, I am fully familiar with all the facts of this matter including Plaintiffs' shameless complaints against the Defendant and Defendant's unashamed gay lifestyle.

2. Concealing Plaintiff THOMAS E. DESOUSA's discriminatory prejudices under legal theories alleging "nuisance" and "intentional infliction of emotional distress," this notably unproven, unsupported, and defective¹ complaint results from nothing more than personal squabbles between quarreling neighbors, documented and proven as such in:

A. police reports that refused to find any merit to Plaintiffs' complaints and actually told Plaintiffs Defendant was not guilty of any nuisances. It is also worth noting that despite Plaintiffs' repeated complaints to controlling authorities, **NO building department or other governing bodies have issued any violations** to Defendants and that the Plaintiffs failed to offer an unbiased, third party expert report documenting the sound of Defendant's car a nuisance;

B. the failure of any other neighbor to participate in the lawsuit or, provide even a supporting affidavit nevertheless testify as a third party. In fact, the only neighbor who was subpoenaed to testify was Mr. CAMARDA the owner of the home next door to the Plaintiffs. Instead of supporting Plaintiffs' complaint, Mr. CAMARDA testified that the Plaintiff had also sued him and that he did not,

¹ In Defendant's Verified Answer and again at depositions, Defendants advised the Plaintiffs of their Complaint's fatal procedural defect in ¶4, mistakenly identifying themselves (as opposed to Defendants) of the owners of the herein complained of property.

contrary to Plaintiffs' assertions, pay Defendants money to dock his boat in the back of their home but rather, that he was granted that right because Plaintiff was "a good guy"; a characterization supported by Plaintiff's own admissions that the Plaintiff had invited him to his home and parties he held there as the "neighborly thing to do"; and

C. Plaintiffs' admissions that they were NOT, at the commencement of the action, seeing any doctors, psychologists or other mental health professionals for alleged illnesses and suffering they complained of; NOT prescribed any medications before or after commencement of the action; and had NOT suffered any pain, suffering or emotional distress, wholly and completely **failing at deposition, discovery and or at any other time, to provide proof of any compensatory damage.**

3. This action represents a gross waste of judicial resources. Defendant's annexed affidavit sets forth the factual insufficiencies of Plaintiff's defectively pled Complaint. This affirmation is submitted to present the legal insufficiencies of that Complaint and the causes of action it alleges.

LEGAL DEFECTS and DEFICIENCIES SUPPORTING SUMMARY JUDGMENT

4. At the outset I note that although raised in Defendant's Verified Answer, again at court conferences and finally, even at deposition, Plaintiff's complaint defectively and quite fatally, mistakenly pleads in ¶4 that:

"Upon information and belief... Plaintiffs were and are the fee owners and residents of ... 320 Grand Central Avenue" i.e. property titled to the Defendants, NOT Plaintiffs.

5. That "information and belief" is as faulty as the "information and belief" upon which Plaintiffs falsely accused Defendant of modifying his car, renting his yard for commercial catering purposes, and illegally renting out dock space; all claimed "nuisances" that Plaintiff failed to prove in discovery and that Defendant, Plaintiff's own witnesses and other documentary evidence established as unsubstantiated and untrue. The Complaint is thus procedurally defective and as Plaintiff has failed to correct even the ownership of the property in question, it must be dismissed. *See, Bischof v Gountas-Ortiz*, 59 Misc 3d 1225(A) [Sup Ct 2018].

6. Beyond that, and as a matter of law, none of the four (4) causes of action pled may be maintained as a matter of law.

First Cause of Action: Private Nuisance

7. The Complaint's first cause of action alleges "Private Nuisance." In Aristides v. Foster, 73 A.D.3d 1105, 1106, 901 N.Y.S.2d 688 (2nd Dep't 2010), the court identified: "The elements of a private nuisance cause of action are an interference (1) substantial in nature, (2) intentional in origin, (3) unreasonable in character, (4) with a person's property right to use and enjoy land, (5) caused by another's conduct in acting or failure to act." While Plaintiff's pays unsupported lip service to all those elements (even though following discovery and depositions they failed to prove the truth of those allegations) it nonetheless fails to demonstrate their entitlement to monetary damages as is required by law, and indeed the Plaintiff's failed to offer any appraisals or other expert reports documenting the value of the property at any time. As noted in Hogan v County of Lewis, New York, 7:11-CV-754 (BJR), 2017 WL 3017499, at *5-10 [NDNY July 14, 2017], affd sub nom. Okudinani v Rose, 779 Fed Appx 768 [2d Cir 2019]:

"[P]laintiffs must demonstrate their entitlement to monetary damages[.]" Guzzardi v. Perry's Boats, Inc., 460 N.Y.S.2d 78, 82 (App. Div. 1983). "Where the injury is permanent, the measure of damages for private nuisance is the diminution of the market value of the property, or where the injury is temporary, the [measure is the] reduction of the rental or usable value of the property." *Id.* (internal citations omitted)...

Here, the Hogans seek compensatory and punitive damages stemming from interactions and events that occurred between July 2008 and June 2017. According to the Hogans, these approximately 12 incidents, taken together, amount to private nuisances. The Hogans did not, however, present any evidence suggesting—**nor did they allege in their Complaint that any of the Hogans' land suffered a diminution of its market value or a reduction of the rental or usable value.** See Am. Compl., Doc. 4 ¶¶ 57-58 (seeking private nuisance damages for Hogans' inability to "secure the private enjoyment of their property and los[s of] the enjoyment of their family, friends, [and] their property [because they] suffered fear, stress, pain, emotional upset, mental anguish, and [have] been forced to endure outrageous and undue mental suffering and inconvenience"). **This failure to set**

forth appropriate damages dooms the Hogans' claims without the necessity of further examination by the Court. However, the Hogans' claims fail on other grounds.” Emphasis supplied.

So too do these Plaintiffs’ similar failures to set forth appropriate damages, doom their complaint without the necessity of further examination. Yet, and as Defendant’s annexed affidavit illustrates in evidentiary proof, upon further investigation, the Plaintiffs’ UNSUPPORTED claims fail on other grounds as well, as their complaints of nuisance (grounded upon “information and belief”) were all unsupported and unproven.

8. **NO other neighbors have lodged a complaint or joined with Plaintiffs** in their prejudicial pursuit of declaring Defendants, or their complained of conduct, a nuisance to the community as Plaintiffs allege. Despite calling the police and other municipal authorities to their home to monitor, report and/or simply acknowledge Defendants’ conduct, **NO police officer, third party or other summoned official has recognized the Defendants, their car or conduct in violation of any law, rule or safety violation.** Despite deposing four (4) non-party witnesses to prove Defendants’ car was “modified” (but more likely called to harass and jeopardize Defendant’s employment as his employer contracts with the WESTBURY JEEP dealer and Defendant regularly interacts with the employees Plaintiffs noticed for deposition) **NONE of the four (4) non party witnesses supported Plaintiffs “information and belief” and in fact, ALL witnesses dispelled the allegations upon which Plaintiffs grounded their complaint.** As in Hogan, *id*, Plaintiffs’ allegations “amount to no more than the irritations that come with living in close proximity to others. Few, if any, even occur on land owned by a Defendant. None meet the requisites of legal nuisance.”

Public Nuisance

9. The Complaint’s second cause of action pleads “Public Nuisance.” As a matter of law (and ignoring the fact that the neighbors have not supported the Plaintiffs’ action or even

complaints), **Public Nuisance is not actionable by a private person.** As noted in Monaghan v R.C. Diocese of Rockville Ctr., 165 AD3d 650, 652-54 [2d Dept 2018]

The Supreme Court also should have granted that branch of the motion which was pursuant to CPLR 3211(a)(7) to dismiss the third cause of action alleging public nuisance (*see Copart Indus. v. Consolidated Edison Co. of N.Y.*, 41 N.Y.2d 564, 568, 394 N.Y.S.2d 169, 362 N.E.2d 968; **478 *Haire v. Bonelli*, 57 A.D.3d 1354, 1358, 870 N.Y.S.2d 591; *Andersen v. University of Rochester*, 91 A.D.2d 851, 851, 458 N.Y.S.2d 404). “A public nuisance exists for conduct that amounts to a *substantial interference with the exercise of a common right of the public*, thereby offending public morals, interfering with the use by the public of a public place or endangering or injuring the property, health, safety or comfort of a considerable number of persons” (*653 532 *Madison Ave. Gourmet Foods v. Finlandia Ctr.*, 96 N.Y.2d 280, 292, 727 N.Y.S.2d 49, 750 N.E.2d 1097 [emphasis added]). “A **public nuisance is a violation against the State and is subject to abatement or prosecution by the proper governmental authority**” (*id.* at 292, 727 N.Y.S.2d 49, 750 N.E.2d 1097; *see Copart Indus. v. Consolidated Edison Co. of N.Y.*, 41 N.Y.2d at 568, 394 N.Y.S.2d 169, 362 N.E.2d 968; *see also* Penal Law § 240.45[1]). **A public nuisance is actionable by a private person only where the person suffered special injury beyond that suffered by the community at large** (*see 532 Madison Ave. Gourmet Foods v. Finlandia Ctr.*, 96 N.Y.2d at 292, 727 N.Y.S.2d 49, 750 N.E.2d 1097; *Baity v. General Elec. Co.*, 86 A.D.3d 948, 951, 927 N.Y.S.2d 492).” Emphasis supplied.

In the case at bar, the State, its police and local complained to government agencies have all determined that the conduct complained of is NOT a nuisance and the Plaintiffs have failed to allege any special injury beyond that allegedly suffered by the community at large. *See also, Duffy v Baldwin*, 183 AD3d 1053 [3d Dept 2020] wherein “The complaint alleges that plaintiffs and the public (pedestrian, cyclist or motorist) are at risk of suffering a collision. **“[W]here the claimed injury is common to the entire community, a private right of action is barred”** (*Wheeler v. Lebanon Val. Auto Racing Corp.*, 303 A.D.2d 791, 793, 755 N.Y.S.2d 763 [2003] [internal quotation marks and citation omitted], *lv denied* 100 N.Y.2d 507, 763 N.Y.S.2d 813, 795 N.E.2d 39 [2003]). Moreover, we find without merit plaintiffs' claim that they suffer a special damage in that they will suffer liability as a result of any collision that might occur. Even were we to conclude that this claim is not completely speculative, the injury proposed by plaintiffs is not different in

kind, but merely in degree, to that which may be suffered by the public as a whole. As such, it does not qualify as a “special injury” so as to allow plaintiffs to bring a public nuisance cause of action (*see id.*). Accordingly, this cause of action was properly dismissed.”

10. So too, herein, must Plaintiffs’ second cause of action be properly dismissed as a matter of law. Plaintiffs are barred from maintaining a private cause of action for public nuisance.

Nuisance “*Per Se*”

11. The third cause of action alleges “Nuisance Per Se.” Respectfully, your affirmant could not find any NY case law recognizing nuisance per se as an independent cause of action, but I did discover at <https://digitalcommons.law.uw.edu/wlr/vol38/iss2/20>, a Washington Law Review Article entitled “Torts-Nuisance Per Se”, L. W. Houger, Washington Case Law, Torts—Nuisance Per Se, 38 Wash. L. Rev. 385 (1963) in which its author noted the burdens of proof and distinctions of cases seeking injunctive relief versus damages, explaining:

“Nuisance per se is defined as “an act, thing, omission, or use of the property which in and of itself is a nuisance, and hence is not permissible or excusable under any circumstances.” The difficulties in such a definition are manifest. Mr. Justice (then Judge) Cardozo recognized this fact when he said: We think each case must depend on its own facts for classification as a nuisance at law, or in fact, or neither. . . . [I]f the natural tendency of the act complained of is to create danger and inflict injury upon person or property, it may properly be found a nuisance as a matter of fact; but if the act in its inherent nature is so hazardous as to make the danger extreme and serious injury so probable as to be almost a certainty, it should be held a nuisance as a matter of law ...

The article goes on to explain its defenses, including contributory negligence. Insofar as the Plaintiffs have failed in the first instance to establish proof of any nuisance, further failed to identify any damages (and tellingly, to alternatively demand injunctive relief) and fatally failed to present any proof to support the causes of action they assert “upon information and belief” your affirmant will not address the Plaintiffs’ maliciously motivated retaliatory conduct that contribute

to (if not actually create) the ill will and causes of action they complain about. *See also, McDonald v Gannett Publications*, 121 Misc 2d 90, 92 [Sup Ct 1983] wherein NY Supreme Court Justice RICHARD W. WALLACH, noted that the complaint, much like the complaint herein:

“... contains no allegation of special damages nor on the facts of this case can the pleading be amended to do so. “In the absence of special damage to another, such public nuisance [referring also to a sidewalk interference-claim] **302 is subject only to correction at the hands of public authority”. (*Graceland Corp. v. Consol. Laundries Corp.*, 7 A.D.2d 89, 91, 180 N.Y.S.2d 644, (per Breitel, J.), *aff’d* 6 N.Y.2d 900, 190 N.Y.S.2d 708, 160 N.E.2d 926). In the *Graceland* case, Judge Breitel discussed the “well-known” case of *Flynn v. Taylor*, 127 N.Y. 596, 28 N.E. 418 (which permitted a recovery in a sidewalk obstruction case) as follows: at p. 92, 180 N.Y.S.2d 644:

“On the matter of special damages, moreover, there is no requirement that there be directness of such damage, or that there be any particular quantum, before there is a right to a private remedy, such as injunction. Thus, in the *Flynn* case (*supra*) which involved an obstruction of the sidewalk, it was emphasized that no direct interference with the plaintiff’s premises or business had been shown. The pivotal circumstance was the diversion of pedestrians from the front of plaintiff’s premises. It was held sufficient if the circumstances showed that plaintiff suffered some special damage not common to persons merely using the street for passage. This was also described as too obvious for reasonable dispute.” (underscoring added) It is obvious that plaintiffs here have not and cannot allege any special damages “not common to persons merely using the streets for passage.” This is insufficient. Accordingly defendants’ cross-motions to dismiss the complaint for failing to state a cause of action are granted and the Clerk of this court is authorized and directed to enter judgment in favor of defendants and against plaintiffs dismissing the complaint. Plaintiffs’ motion for a preliminary injunction is denied.”

Plaintiffs herein have failed to allege, and in fact, cannot allege any special damages. Moreover, Defendant’s cannot be enjoined from “abating” a nuisance that does not exist (as Plaintiffs alternatively seek injunctive relief.) Accordingly, Defendants’ motion to dismiss those claims alleging “nuisance” must be granted.

Intentional Infliction of Emotional Distress

12. Plaintiffs’ last and final cause of action seeks relief based upon claims of “Intentional Infliction of Emotional Distress.” The tort of Intentional Infliction of Emotional Distress has long been recognized “as “a departure from the common law” (*McIntyre v. Manhattan Ford, Lincoln-*

Mercury, 256 A.D.2d 269, 270, 682 N.Y.S.2d 167). “The Restatement of Torts, first adopted in 1934, generally insulated an actor from liability for causing solely emotional distress” (*Howell v. New York Post Co.*, 81 N.Y.2d 115, 120, 596 N.Y.S.2d 350, 612 N.E.2d 699; *see* Restatement of Torts § 46[a]).” *Taggart v Costabile*, 131 AD3d 243, 248-57 [2d Dept 2015]

“Ultimately, in *Fischer v. Maloney*, 43 N.Y.2d 553, 402 N.Y.S.2d 991, 373 N.E.2d 1215, the Court of Appeals adopted the Second Restatement's formulation of intentional infliction of emotional distress (*see Howell v. New York Post Co.*, 81 N.Y.2d at 121, 596 N.Y.S.2d 350, 612 N.E.2d 699; *Murphy v. American Home Prods. Corp.*, 58 N.Y.2d 293, 303, 461 N.Y.S.2d 232, 448 N.E.2d 86). Accordingly, under New York law, a cause of action alleging intentional infliction of emotion distress “has four elements: (i) extreme and outrageous conduct; (ii) intent to cause, or disregard of a substantial probability of causing, severe emotional distress; (iii) a causal connection between the conduct and injury; and (iv) severe emotional distress” (*Howell v. New York Post Co.*, 81 N.Y.2d at 121, 596 N.Y.S.2d 350, 612 N.E.2d 699; *see Klein v. Metropolitan Child Servs., Inc.*, 100 A.D.3d 708, 710, 954 N.Y.S.2d 559; *see also* 2A N.Y. PJI2d 3:6 at 54–55 [2014]).

“The first element—outrageous conduct—serves the dual function of filtering out petty and trivial complaints that do not belong in court, and assuring that plaintiff's claim of severe emotional distress is genuine” (*Howell v. New York Post Co.*, 81 N.Y.2d at 121, 596 N.Y.S.2d 350, 612 N.E.2d 699, citing William L. Prosser, *Insult and Outrage*, 44 Cal. L. Rev. 40, 44–45 [1956]). **The element of outrageous conduct has been described as “rigorous, and difficult to satisfy”** (Prosser and Keeton, Torts § 12 at 61 [5th ed. 1984]; *see Howell v. New York Post Co.*, 81 N.Y.2d at 122, 596 N.Y.S.2d 350, 612 N.E.2d 699; *Seltzer v. Bayer*, 272 A.D.2d 263, 264–265, 709 N.Y.S.2d 21). “ ‘Liability has been found only where the *250 conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community’ ” (*Murphy v. American Home Prods. Corp.*, 58 N.Y.2d at 303, 461 N.Y.S.2d 232, 448 N.E.2d 86, quoting Second Restatement § 46, Comment d; *see **394 Marmelstein v. Kehillat New Hempstead: Rav Aron Jofen Community Synagogue*, 11 N.Y.3d 15, 22–23, 862 N.Y.S.2d 311, 892 N.E.2d 375; *Borawski v. Abulafia*, 117 A.D.3d 662, 664, 985 N.Y.S.2d 284). The Court of Appeals has recognized that, of the four essential elements of the tort, “the outrageousness element [is] the one most susceptible to determination as a matter of law” (*Howell v. New York Post Co.*, 81 N.Y.2d at 121, 596 N.Y.S.2d 350, 612 N.E.2d 699). In this way, the requirement that a plaintiff plead and prove extreme and outrageous conduct serves to limit the bounds of liability so that **“fictitious claims” of emotional distress and emotional disturbances caused by “trivialities and mere bad manners” are not litigated in the courts** (Prosser and Keaton, Torts § 12 at 56 [5th ed. 1984]). **This threshold of outrageousness is so difficult to reach that the Court of Appeals recognized, in 1993, that, of the intentional infliction of emotional distress claims that it had considered to**

that date, “every one ha[d] failed because the alleged conduct was not sufficiently outrageous” (*Howell v. New York Post Co.*, 81 N.Y.2d at 122, 596 N.Y.S.2d 350, 612 N.E.2d 699; see *Seltzer v. Bayer*, 272 A.D.2d at 264, 709 N.Y.S.2d 21).” Emphasis supplied.

Respectfully, Plaintiffs’ is just such a “trivial” complaint that does not belong in Court. Plaintiff has failed to even allege, nevertheless prove “outrageous conduct” and so this Court must, as a matter of law, also dismiss the fourth cause of action.

13. In *Taggart v Costabile*, *supra*, Plaintiffs complained that their home was robbed as a result of Defendant’s failure to properly supervise its property and residents. In that case, unlike the case at bar, the Plaintiffs actually sustained real damages (unlike these Plaintiffs who not only failed to prove any damages, not only failed to testify to any damages, and not only failed to allege any damages.) Yet, and still the Court noted such conduct insufficient and found that because the “complaint failed to state a cause of action alleging intentional **395 infliction of emotional distress, the defendants demonstrated, *prima facie*, their entitlement to judgment as a matter of law on that cause of action.”:

“Plaintiffs alleged in the complaint that the defendants “exhibited outrageous and extreme conduct in renting to tenants who posed a clear and present danger to the neighborhood,” and “refused to control the dangerous behaviors of those tenants.” **They alleged that the defendants refused to put a stop to their tenants’ behavior despite the fact that they had actual notice that the tenants were responsible for hosting large gatherings, blocking the flow of traffic, blaring loud music at all hours of the night, drinking alcohol in the street, using illegal drugs in the street, and selling illegal drugs on the rented premises.** The plaintiffs alleged that the defendants’ failure to rein in their tenants ultimately led to the invasion of their property by the intruders.

Although the individuals who broke into the plaintiffs’ home may have engaged in extreme and outrageous conduct, the complaint alleges no basis upon which the intruders’ conduct may be imputed to the defendants. The defendants’ intentional conduct, as alleged in the complaint, amounts to nothing more than a failure to ensure that their tenants and their friends refrained from committing the acts described in the complaint.

*251 While the defendants' failure to mediate the continuing conflict between the plaintiffs and the tenants is easy to condemn, this alleged omission did not constitute extreme and outrageous conduct (*cf. Leibowitz v. Bank Leumi Trust Co. of N.Y.*, 152 A.D.2d 169, 181–182, 548 N.Y.S.2d 513). **Even accepting as true the allegations in the complaint regarding the defendants' conduct, and according the plaintiffs the benefit of every favorable inference, the defendants' conduct was not “ ‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community’ ”** (*Murphy v. American Home Prods. Corp.*, 58 N.Y.2d at 303, 461 N.Y.S.2d 232, 448 N.E.2d 86, quoting Second Restatement § 46, Comment d; *see Borawski v. Abulafia*, 117 A.D.3d at 662, 664–665, 985 N.Y.S.2d 284; *Curtis-Shanley v. Bank of Am.*, 109 A.D.3d 634, 635–636, 970 N.Y.S.2d 830; *Baumann v. Hanover Community Bank*, 100 A.D.3d 814, 817, 957 N.Y.S.2d 111; *Klein v. Metropolitan Child Servs., Inc.*, 100 A.D.3d 708, 710, 954 N.Y.S.2d 559; *Andrews v. Bruk*, 220 A.D.2d 376, 377, 631 N.Y.S.2d 771).

Inasmuch as the complaint failed to state a cause of action alleging intentional **395 infliction of emotional distress, the defendants demonstrated, *prima facie*, their entitlement to judgment as a matter of law on that cause of action (*see generally Light v. Light*, 64 A.D.3d at 634, 883 N.Y.S.2d 553; *Fischer v. RWSP Realty, LLC*, 53 A.D.3d at 595, 862 N.Y.S.2d 541; *see also Weiss v. Michael Taylor, Ltd.*, 95 A.D.3d at 1306, 944 N.Y.S.2d 903; *Ort v. Ort*, 78 A.D.3d at 1138, 911 N.Y.S.2d 666). Since the plaintiffs failed to rebut this *prima facie* showing, the Supreme Court should have granted that branch of the defendants' motion which was for summary judgment dismissing the cause of action to recover damages for intentional infliction of emotional distress.” Emphasis supplied.

Documentary evidence and witnesses have proven the Plaintiffs' complaints as untrue, but even if they were true, under the above quoted case law, the allegations were not so outrageous in character or so extreme in degree as to go beyond all possible bounds of decency to sustain a cause of action for Intentional Infliction of Emotional Distress.

Counsel Fees

16. As the Defendant has wasted the time, effort and limited resources of all relevant parties including this Court, Plaintiff cross moves for an award of attorney's fees.

17. Pursuant to 22 NYCRR Section 130-1.1 , a court, in its discretion, may award to any party or attorney in any civil action:

Costs in the form of reimbursement for actual expenses reasonably incurred and reasonable attorney's fees, resulting from frivolous conduct as defined in this Part. In addition to or in lieu of awarding costs, the court, in its discretion may impose financial sanctions upon any party or attorney in a civil action or proceeding who engages in frivolous conduct as defined in this Part, which shall be payable as provided in section 130-1.3 of this Subpart.

....

(c) For purposes of this Part, conduct is frivolous if:

- (1) it is completely without merit in law and cannot be supported by a reasonable argument for an extension, modification or reversal of existing law;
- (2) it is undertaken primarily to delay or prolong the resolution of the litigation, or to harass or maliciously injure another; or
- (3) it asserts material factual statements that are false.

18. Here, the Defendant filed a substantively defective application, completely and entirely made without merit. Thus, it is respectfully requested that the Defendant's application be denied and that sanctions in the form of counsel fees in the amount of \$44,700.00 be imposed.

19. Annexed hereto as **Exhibit "I"** is a copy of the Defendant's retainer agreement, an initial retainer of \$5,000.00 was paid. Billing invoices rendered in relation to the instant matter are annexed hereto as **Exhibit "J"**. There is currently a credit balance of \$792.50. The Defendant has paid \$44,700.00 in connection with this matter.

20. It is submitted that when courts neglect to direct the payment of adequate awards of counsel fees and/or sanctions, litigants are only encouraged to continue to file further frivolous causes of action.

21. Under the circumstances of this case, the requested fee award is fair and reasonable.

22. As to counsel's experience, I specialize in the field of litigation and am fully familiar with the nature and quantity of legal services necessary to properly prepare and prosecute and/or defend an action.

23. I was admitted to the Bar in 2000, and I have engaged in the practice of law since that time. I have maintained this law firm for the practice of law for the past fourteen (14) years and maintain an office at 3 Dakota Drive, Suite 300, New Hyde Park, New York. I am a member of the Nassau County Bar Association, New York State Bar and American Bar Association.

24. I request that we be awarded a reasonable sum, based on our current rates, for our services set forth in the retainer agreement. No one has agreed to pay Plaintiff's fees on his behalf.

25. Plaintiffs herein have wholly and completely failed to state (and/or to provide evidentiary proof of) an actionable claim to support their Complaint or to prove any damages or seek relief for what amounts to nothing more than an unfortunate feud between two neighbors (again, and fatally, Plaintiffs have failed to provide any support from their neighbors as to the allegations said to affect the entire neighborhood.) Defendants' motion seeking summary judgment dismissing the Plaintiffs' complaint and its unsupported causes of action must be granted along with an award of legal fees.

WHEREFORE, your affirmant respectfully asks this Court to grant to Defendant the relief requested in his annexed Order to Show Cause together with such other, further and different relief as to this Court may seem just and proper.

Dated: New Hyde Park, NY
April 18, 2024



JASON M. BARBARA, ESQ.